

		judgment that was supported by an expert declaration showing Defendant's treatment of Plaintiff was within the standard of care and Defendant did not cause or contribute to Plaintiff's harm. Defendant further states that the expert fees challenged by Plaintiff were incurred after the Section 998 was made. Additionally, believing in the merits of the claims a plaintiff chooses to pursue against a defendant and declining to accept a defendant's Section 998 offer carries a cost shifting risk inherent in declining said offer. "Notwithstanding plaintiffs' perception of their likelihood to prevail, '[w]hen a defendant perceives himself to be fault free and has concluded that he has a very significant likelihood of prevailing at trial, it is consistent with the legislative purpose of section 998 for the defendant to make a modest settlement offer. If the offer is refused, it is also consistent with the legislative intent for the defendant to engage the services of experts to assist him in establishing that he is not liable to the plaintiff. It is also consistent with the legislative purpose under such circumstances to require the plaintiff to reimburse the defendant for the costs thus incurred.' [Citation.]" (<i>Melendrez v. Ameron Internat. Corp.</i>, supra, 240 Cal.App.4th at p. 650.) Because Plaintiff has not met her burden to show Defendant's Section 998 offer was made in bad faith and for an improper purpose, the motion to tax costs is DENIED. Defendant to give notice.
2	Yegenian vs. Takegami	The Demurrer to the Complaint brought by Defendant Mano Takegami is OVERRULED, as to the First and Second Causes of Action and, SUSTAINED, as to the Third Cause of Action, with 15 days leave to amend. Initially, the Court notes that Defendant failed to comply with Code of Civil Procedure section 430.41, as the same requires efforts to meet and confer "in person, by telephone, or by video conference," as well as a declaration which attests to compliance. (Code Civ. Proc., § 430.41, subd. (a)). While the Court exercises its discretion to proceed on the merits, Counsel R. Casey Hull is advised that failure to comply with this provision in the future may result in the demurrer being taken off calendar, until compliance is shown. With respect to the First Cause of Action for Breach of Contract, Defendant asserts "Plaintiffs do not identify any specific provision of the Residential Purchase Agreement ('RPA') that Defendant TAKEGAMI allegedly breached." (Demurrer: 3:15-17.) To support her assertion express identification of the relevant contractual provision is required, Defendant cites <i>Otworth v. Southern Pac. Transportation Co.</i> (1985) 166 Cal.App.3d 452, wherein the complaint had "set[] forth none of the alleged contract's terms..." (<i>Id.</i> at p. 459.) In